

25STCP00749 25STCP00749

County: los-angeles

Division: Civil Law and Motion

Department: 834

Hearing date: 2026-08-11

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Case Number: 25STCP00749 Hearing Date: August 11, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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JENNIFER

CHRISMAN,

Petitioner(s),

vs.

COUNTY OF LOS ANGELES,

Respondent(s).

Case No.:

25STCP00749

Hearing Date:

August 11, 2026

[TENTATIVE] RULING ON PETITION

FOR WRIT OF MANDATE

Petitioners Jennifer Chrisman and Carey Chrisman (collectively, "Petitioners") petition for a writ of administrative mandate as to respondent County of Los Angeles ("Respondent") directing it to set aside its decision to approve a final map ("Final Map") for Tract 45465-04 ("Tract").

The petition for writ of mandate is denied.

I.

Factual Background

On October 5, 1988, Respondent's Regional Planning Commission ("Commission") approved Vesting Tentative Tract Map No. 45465 for the subdivision of a 443-acre lot into 81 single family residential lots, subject to conditions ("Conditions") including, among others, provision of proof of off-site rights to build a debris basin and storm drain system (AR 104-05) and securing title or interest to permit any off-site improvements (AR 104, 130, 143). (AR 116-47.)

On May 7, 2021, Petitioners executed an agreement to purchase the property located at 26763 Mulholland Highway, Calabasas, CA ("Property"). (AR 113.) During escrow, seller Arthur A. Alisi Family Survivor's Trusts Established on December 21, 1995 ("Seller") trustees Justin Freer ("Freer") and Jaime Varley ("Varley") executed a Deed Restrictions Grant of Construction and Easement Rights ("Grant of Rights") to developer Spectrum Development, Inc. ("Spectrum"), allowing Spectrum to satisfy the Conditions. (SAR 1-28.)

Thereafter, Petitioners filed suit seeking, inter alia, to quiet title and compel specific performance, case no. 21STCV31211 ("Title Action"). (AR 19-33.) Some of the Title Action claims were submitted to mandatory binding arbitration between only Petitioners and Freer and Varley (for Seller) under the Property purchase agreement, and the arbitrator's Partial Final Arbitration Award ("Award") (SAR 29-67) concluded Petitioners had a right to specific performance to receive title to the Property subject to determination in the Title Action. (SAR 60, 62).

On June 13, 2024, Petitioners objected to processing an approval of the Final Map on the basis that subdivider Malibu Valley Partners, LLC ("Valley Partners") had not secured sufficient title or interest in the Property and so could not satisfy the Conditions. (SAR 68-174.)

Respondent replied, stating approval of the Final Map was "contingent upon the developer complying with the conditions of approval" and noting that "[o]ne of the listed requirements of the Drainage Concept was that the developer show proof of having necessary off-site rights to build a debris basin and storm drain system" through the Property, and concluding that that condition was not met. (AR 104-05).

On December 16, 2024, Respondent approved the Final Map at public hearing ("Decision"). (AR 93-103.)

II.

Procedural History

February 26, 2025, Petitioners filed their petition. Proofs service filed March 14, 18, and 19 show Petitioners served the summons and petition as follows:

- On Respondent by personal service on March 7, 2025;
- On real party Valley Partners by substituted service on March 7, 2025, and by mail the same day;
- On real party Varley by personal service on March 10, 2025;
- On real party Brian Boudreau ("Boudreau"), as an individual as trustee of The Boudreau Trust of 1990 and Malibu Canyon Trust[1], by substituted service on March 7 and 11, 2025 and by mail on both of those days;
- On real party Spectrum by substituted service on March 7, 2025 and by mail the same day;

- On real party Malibu Canyon Trust (“Canyon Trust”) by substituted service on March 7, 2025 and by mail the same day;
- On real party Estate of Charles Boudreau (“Estate”) by substituted service on March 11, 2025, and by mail the same day;
- On real party Malibu Canyon LP (“Canyon”) by substituted service on March 7, 2025; and
- On real party The Farms at Malibu Valley Homeowners Association (“Association”) by personal service on March 7, 2025.

A notice and acknowledgment of receipt filed March 18, 2025 shows real party Freer acknowledged receipt of the summons and petition on March 14, 2025.

On June 8, 2026, Petitioners filed their opening brief. On July 8, 2026, Respondent and RPIs filed their opposition. On July 14, 2026, the Court ordered the administrative record augmented in accordance with the parties’ joint stipulation.[2] On July 21, 2026, Petitioners filed their reply.

On August 3, 2026, the Court continued the hearing on the Petition from August 4, 2026 to August 11, 2026.

III.

Standard of Review

Code of Civil Procedure (“CCP”) section 1094.5 is the administrative mandamus provision that structures the procedure for judicial review of adjudicatory decisions rendered by administrative agencies. (*Topanga Ass’n for a Scenic Community v. County of Los Angeles* (1974) 11 Cal.3d 506, 514-15) [“*Topanga*”].) Section 1094.5 does not specify which cases are subject to independent review, leaving that issue to the courts. (*Fukuda v. City of Angels* (1999) 20 Cal.4th 805, 811 [“*Fukuda*”].) In cases reviewing decisions that affect a vested, fundamental right, the trial court exercises independent judgment on the evidence. (*Bixby v. Pierno* (1971) 4 Cal.3d 130, 143 [“*Bixby*”]; see CCP § 1094.5(c).)

“Substantial evidence” is

relevant evidence that a reasonable mind might accept as adequate to support a conclusion (*California Youth Authority v. State Personnel Board* (2002) 104 Cal.App.4th 575, 585 ["California Youth Authority"]) or evidence of ponderable legal significance, which is reasonable in nature, credible and of solid value (*Mohilef v. Janovici* (1996) 51 Cal.App.4th 267, 305, n. 28). Substantial evidence can be the opinion of a single expert (*Coastal Southwest Dev. Corp. v. Coastal Zone Conservation Comm'n* (1976) 55 Cal.App.3d 525, 532), or opinions in a staff report (*Griffin Dev. Co. v. City of Oxnard* (1985) 39 Cal.3d 256, 261).

The court considers all evidence in the administrative record, including evidence that detracts from evidence supporting the agency's decision. (*California Youth Authority*, *supra*, 104 Cal.App.4th at p. 585.) The court must uphold the decision unless it concludes, based on the evidence before the agency, a reasonable person could not reach the conclusion reached by the administrative agency. (*Harris v. City of Costa Mesa* (1994) 25 Cal.App.4th 963, 969 ["Harris"].) Where "reasonable persons may differ," the courts will not disturb the judgment of the administrative agency. (*Breakzone Billiards v. City of Torrance* (2000) 81 Cal.App.4th 1205, 1246.) The court does not weigh evidence or decide who has the better argument and must resolve reasonable doubts in favor of the findings and decision. (*Topanga*, *supra*, 11 Cal.3d at p. 514.)

An agency is presumed to have regularly performed its official duties (Evid. Code § 664), and the petitioner therefore has the burden of proof on mandamus. (*Steele v. Los Angeles County Civil Service Commission* (1958) 166 Cal.App.2d 129, 137.) "[T]he burden of proof falls upon the party attacking the administrative decision to demonstrate wherein the proceedings were unfair, in excess of jurisdiction or showed prejudicial abuse of discretion." (*Alford v. Pierno*, (1972) 27 Cal.App.3d 682, 691.)

IV.

Analysis

Petitioners seek administrative mandamus to set aside Respondent's Decision to approve the Final Map on the grounds that (1) Respondent could not lawfully approve the final Map without compliance with the Conditions; (2) any reliance on the Grant of Rights

violates the Award; and (3) Respondent failed to bridge the analytical gap between the evidence and its findings.

While Petitioners argue the matter under the standard for administrative mandamus, the action turns on matters of law.[3]

While the courts generally afford significant deference to agency decisions in mandamus proceedings, the court reviews de novo rulings on questions of law. (Sieg v. Fogt (2020) 55 Cal.App.5th 77, 88.)

1.

Respondent Could Lawfully Approve the Final Map

Petitioners argue the Respondent abused its discretion in its Decision to approve the Final Map because Valley Partners had not complied with all Conditions of the tentative map. Specifically, Petitioners argue Valley Partners has not secured off-site title rights to build an off-site debris basin and storm drain system, which would require rights to build on the Property. Petitioners further contend that Respondent itself acknowledged noncompliance when DPW stated, in July 2024, that it could not recommend approval because the developer had not demonstrated sufficient off-site rights.

In opposition, Respondent argues that the Final Map substantially complied with the Conditions, and thus Respondent lawfully approved, and was required to approve under Government Code section 66462.5, the Final Map.[4] Respondent contends that section 66462.5(a) directly prohibits a local agency from refusing or postponing approval of a final map on the basis of missing off-site title rights when the improvements at issue are “off-site improvements” governed by the statute, and that any unresolved title dispute can be addressed through an agreement to complete the improvements at a later time.

In reply, Petitioners argue Government Code section 66462.5 does not apply, because that section only applies to “public improvements,” and the drainage system is not a public improvement because it is not “streets, sidewalks, sewer and/or water lines, street lights, etc.” (Reply at 2.) Thus, they reason, the County must deny a final map that does not conform to the tentative map and its conditions. Petitioners again rely on DPW's July 2024 correspondence as evidence that Respondent recognized

that section 66462.5(a)'s mandatory approval rule does not apply.

To resolve these competing interpretations, the Court first clarifies what constitutes an “improvement” and, by extension, a “public improvement” under the Subdivision Map Act. The threshold question before the Court is whether the drainage system is a “public improvement” subject to Government Code section 66462.5. The Court concludes that it is.

Petitioners correctly note that “[i]mprovement plan,” within the meaning of the Subdivision Map Act, “means the plan for public improvement as described in Sections 66418 and 66419.” (Reply at 2.) Government Code section 66419, in turn, provides definitions for the relevant statute as follows:

(a) ‘Improvement’ refers to any street work and utilities to be installed, or agreed to be installed, by the subdivider on the land to be used for public or private streets, highways, ways, and easements, as are necessary for the general use of the lot owners in the subdivision and local neighborhood traffic and drainage needs as a condition precedent to the approval and acceptance of the final map thereof.

(b) ‘Improvement’ also refers to any other specific improvements or types of improvements, the installation of which, either by the subdivider, by public agencies, by private utilities, by any other entity approved by the local agency, or by a combination thereof, is necessary to ensure consistency with, or implementation of, the general plan or any applicable specific plan.

(Gov. Code § 66419.)

This language is broad. It expressly includes “easements,” as are needed for lot owners’ general use and “local neighborhood traffic and drainage needs.” Subdivision drainage systems, including storm drain facilities and debris basins that serve several lots and address neighborhood drainage demands, fall within subsection (a) because they are “necessary for the general use of the lot owners” and meet “local neighborhood...drainage needs.”

Nothing in the statute limits

subsection (a)'s reach to the specific categories that Petitioners list ("streets, sidewalks, sewer and/or water lines, street lights, etc."). Nor does the statute draw a distinction between improvements located within the subdivision boundary and those located on adjacent parcels, so long as they serve subdivision drainage (or traffic) needs.

Thus, while Petitioners highlight that the improvements at issue do not fall neatly into their selected examples, the statutory definition is much broader and encompasses the drainage improvements at issue in this case. There is no further or more restrictive definition provided for a "public improvement," and as described, these improvements are facially "public" in character. The Court therefore rejects Petitioners' argument that section 66462.5(a) applies only when improvements fall within a narrow category that the statute itself does not appear to require.

Accordingly, Government Code section 66462.5 applies, and Respondent was prohibited from postponing or refusing approval of the Final Map based on the off-site rights and drainage system Conditions, but instead was required, if other Conditions were met, to require Valley Partners to enter into an agreement to complete the improvements at such time as sufficient interest is acquired. (Gov. Code § 66462.5.)

2.

Respondent Need Not Rely on the Grant of Rights

Petitioners argue that Respondent cannot rely on the Grant of Rights to show compliance with the Conditions.

As discussed above, Respondent was required to approve the Final Map even if Spectrum had not acquired sufficient off-site rights, as long as there was otherwise substantial compliance with the Conditions. (Gov. Code § 66462.5.) Therefore, any reliance on the Grant of Rights to meet that Condition, whether valid or not, is immaterial. Because the County's approval was compelled by statute, the Court need not determine whether the Grant of Rights is valid, enforceable, or capable of satisfying Tentative Map Conditions in the absence of section 66462.5(a).

Accordingly, this is not grounds

to overturn the Decision.

3.

Respondent Need Not Find Spectrum Had Off-Site
Rights

Petitioner argues that the
Decision failed to bridge the analytic gap between the evidence and the
ultimate conclusion that the Final Map was in substantial compliance.

The Court does not reach the
question, because the answer would not impact the final resolution of this
matter. As discussed above, Respondent could not deny or postpone the Final Map
on the basis that Spectrum did not have the off-site rights. (Gov. Code §
66462.5.) Thus, even assuming Respondent's findings were incomplete or would
otherwise warrant closer scrutiny under Topanga, those issues are not
material where section 66462.5(a) independently requires approval.

V.

Conclusion

Respondent could not legally deny
or postpone the Final Map based solely on the lack of off-site rights, even
though such was a Condition of the tentative map. Any insufficiencies in any
showing or finding that Spectrum had such rights are immaterial. Because
Petitioners' remaining arguments depend on an interpretation of the Subdivision
Map Act that the Court does not adopt, and because section 66462.5(a) required
approval once other Conditions were satisfied, Petitioners have not
demonstrated a basis to disturb the Decision.

The petition for administrative
mandamus is therefore DENIED. Pursuant to Local Rule 3.231(n), respondent County
of Los Angeles shall prepare, serve, and ultimately file a proposed judgment.

Date:

August 11, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

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Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

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If

a party intends to submit on this tentative ruling, the party may send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

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Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

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If

the parties neither submit nor appear at hearing, the court may take the matter off calendar or adopt the tentative ruling as the order of the court. After the court has issued a tentative ruling, the court may prohibit the withdrawal of the matter without leave.

[1]

Malibu Canyon Trust was named as a real party as an entity of unknown form. Malibu Canyon Trust is a trust for which Boudreau is trustee.

[2]

The supplemental administrative record ("SAR") includes all documents for which Petitioners requested judicial notice.

[3]

Relatedly, Respondent argues its approval was ministerial under the Housing Accountability Act ("HAA"), subject only to certain objective grounds for denial. As discussed below, Respondent could not deny the Final Map on the grounds Petitioner raises. Consequently, Respondent had no discretion on the

limited question at issue, regardless of whether the HAA rendered the overall approval ministerial.

[4]

Respondent and RPIs present a single opposition. While the Court refers only to Respondent for simplicity, all references to Respondent's arguments are also RPI's arguments.